

Court No. - 21

Case :- WRIT - C No. - 6976 of 2023

Petitioner :- Anuddin Ansari

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the electricity department seeks time to obtain instructions.

Put up as fresh on 15.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.2.2023

Jaswant

Court No. - 21

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Petitioner :- Anuddin Ansari

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

As prayed, the case is adjourned to 22.03.2023 as fresh.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Shivangi

Court No. - 21

Case :- WRIT - C No. - 6976 of 2023

Petitioner :- Anuddin Ansari

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed praying for quashing of the recovery citation dated 28.9.2022, issued by respondent no. 4 on basis of the information furnished to him by respondent no. 5. The recovery citation is in respect of recovery of the amount allegedly assessed against the petitioner under Section 126 of the Electricity Act, 2003.

The specific case of the petitioner is that he had filed objection against the order of provisional assessment on 2.1.2023, but without deciding the same, the recovery citation has been issued.

Sri Vinayak Ranjan, holding brief of Sri Kartikeya Saran, learned counsel appearing on behalf of the Electricity Department, on instructions has placed before us a calculation sheet by the dealing assistant, mentioning the amount which has to be realized from the petitioner under Section 126 of the Act. He admits that there is no separate order of final assessment.

We had noted in the past that issuance of recovery citation on basis of provisional assessment is ex facie illegal and the Managing Director of the concerned Discom had given undertaking that the same will not be repeated in future and in cases where such mistake is discovered, remedial steps would be taken. He had also assured of taking disciplinary action against the officials responsible for not following the procedure prescribed under law

for making assessments. However, in the instant case, we find that the concerned Executive Engineer even after filing of the writ petition, has not taken steps to correct the mistake.

As it is admitted that there is no final order of assessment in existence, we hereby quash the recovery citation dated 28.9.2022 and leave it open to respondent no. 5 to proceed further in the matter, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Let the matter be placed before the Managing Director of the concerned Discom for taking appropriate action against the erring officials.

The petition is disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.3.2023

Jaideep/-